

to insist that the coming election shall be conducted on a different principle; it would be a bold thing to say, *that the parish of to-day could bind the parish [*89] of to-morrow to deviate from the original and legitimate mode (a).

[Where an election had taken place, the Court, although of opinion that the proceedings in vestry determining the mode of election had been illegal and irregular, refused to set the election aside, on the ground that there was no evidence that the election itself had been improperly conducted, or that any voter had been prevented from recording his vote (b).]

12. Trusts for accumulation.—Again, upon principles founded on the Law of Tenure, the freehold *in presenti* must be vested in some person *in esse*; but under the system of trusts, which are wholly independent of feudal rules, a settlor may give directions for an accumulation of rents and profits, and it does not vitiate the trust that there is no ascertained owner of the equitable freehold in possession (c).

Trusts for accumulation must not lead to a perpetuity.—But trusts for accumulation must be confined within the limits established against perpetuities.¹ A settlor is permitted (by

(a) See 2 Russ. 106; [Shaw v. Thompson, 3 Ch. D. 233.]

(c) See Fearne's C. R. by Butler, 537, note (x); [Abbiss v. Burney, 17

[(b) Shaw v. Thompson, 3 Ch. D. 233.] Ch. D. 211.]

¹ *Accumulations.*—Trusts for accumulations must be kept within the requirements of the rule regarding perpetuities, but aside from those, the settlor may direct the disposition, or the accumulation of rents, profits and all income, so as to cut off the beneficial enjoyment of the trust property, for the same length of time that he can control the legal estate; Killam v. Allen, 52 Barb. 605; Hillyard v. Miller, 10 Barr, 326; Hooper v. Hooper, 9 Cush. 122; Fosdick v. Fosdick, 6 Allen, 43; Thorndike v. Loring, 15 Gray, 391; if a party, even though not in existence at the time, have a vested right of possession, then the length of time of accumulation is immaterial, the direction to accumulate results rather in a restraint upon alienation, than a too lengthy period of accumulation; Gray on Perpetuities, 401; Otis v. Coffin, 7 Gray, 511; if the accumulation is a condition precedent, or for too long a time, the provision is altogether void, as it cannot be varied; Gray on Perpetuities, 402; Thorndike v. Loring, 15 Gray, 391; if a bequest is properly made, with an illegal direction to accumulate, the former may be held good, and the latter declared void; Philadelphia v. Girard, 45 Pa. St. 1; Phelps v. Pond, 23 N. Y. 69; Craig v. Craig, 3 Barb. Ch. 76; Hawley v. James, 5 Paige, 318; but if the gift takes effect only after the accumulation, they must stand or fall together;